

## ASSET MANAGEMENT AGREEMENT

- ☒ New Contract
- ☐ Replaces the existing Contract

The Parties

**Tramondo Investment Partners AG**

Unter Altstadt 10

6302 Zug

(hereinafter referred to as the «Asset Manager»)

and

**Max Muster**

Bahnhofstrasse 1 Adresse2

Zurich, Switzerland

(hereinafter referred to as the «Client»)

enter into the following Agreement regarding asset management (hereinafter referred to as the «Agreement»):

## 1. Content of the Asset Management Agreement

The Client hereby instructs the Asset Manager to independently manage the following assets and grants the Asset Manager with all disposal rights, powers of attorney and signatory rights required for the performance of this mandate for the following custody account and the corresponding associated accounts.

Financial institution: **Depotbank**

Custody account number: **Portfolionummer**

This Agreement and the herein defined investment strategy shall also apply to investments executed for deposits made by the Client to the above-mentioned custody account and corresponding accounts at a later point in time after the conclusion of the contract.

The Client authorizes the Asset Manager to take at its own discretion all actions deemed appropriate for the management of assets as set out in this Agreement for the account and risk of the Client. In particular, this includes:

- Buying and selling (spot or forward) securities and book-entry securities (and derivative instruments and combinations thereof), units in collective investment schemes, precious metals, commercial papers, currencies and money market investments, derivative financial instruments (options and futures) and other assets (particularly hedge funds and structured products);
- Converting and exercising or selling subscription rights, conversion rights and similar rights and
- Making fixed-term and fiduciary deposits in various currencies.

Investments in contracts for difference and securities lending are expressly excluded. Any deviation from this policy or the inclusion of such activities must be expressly agreed upon by means of a supplementary agreement.

This authorization is limited by the investment strategy agreed with the client.

The Asset Manager is authorized to exercise rights arising from the investments (e.g. voting rights) provided the Client grants the Asset Manager a written mandate with a power of attorney and instructions to this effect.

The Asset Manager shall execute all corporate actions (e.g., capital increases, dividends, takeover bids) if reasonable and necessary considered. There is no actual obligation for the Asset Manager to exercise corporate actions.

The Asset Manager is not authorized to execute payments to third-party accounts.

## 2. Duty of investigation and the risk profile

The Asset Manager has obtained sufficient information and documented this in an appropriate manner, which allows it to be in a position to recommend and implement the investment of assets and investment strategy suitable to the Client's needs, knowledge and experience. For this purpose, the Asset Manager shall create a risk profile for the Client (Appendix «Risk Profile Questionnaire»).

<sup>1</sup>For reasons of better legibility, the masculine form has been used throughout this Agreement; however, this of course shall be deemed to include the feminine form to the same extent

This must include, in particular, information concerning the Client's personal information, experience and knowledge in asset management, income and financial situation, the investment purpose and horizon, information regarding the investment objective, risk tolerance and capacity and reference currency.

The risk profile forms the basis for the Asset Manager's decision when recommending the investment strategy and policy. Incomplete, missing or incorrect information on the risk profile may result in a less optimal investment strategy and policy recommended by the Asset Manager. Furthermore, incomplete, missing or incorrect information on the risk profile may also lead to an incorrect assessment of suitability (cf. Section 3). The Asset Manager is not liable for any direct, indirect or subsequent damages resulting therefrom. The Asset Manager shall review the risk profile regularly or based on significant changes in the Client's personal or financial situation, shall adjust it where necessary.

If the risk profile no longer corresponds to the Client's current situation, the Client shall be informed. This shall be recorded in writing.

The Client undertakes to inform the Asset Manager immediately of any changes to his personal or financial situation, which could impact the risk profile.

### **3. Suitability of the financial service**

In providing the asset management service, the Asset Manager shall take into account the knowledge and experience of the Client and the financial circumstances and the investment objectives, which have been determined together with the Client pursuant to the separate risk profile. The Client's knowledge and experience relate to the financial service and not to the individual transactions.

The Asset Manager shall ascertain the client's knowledge and experience with respect to each relevant investment category utilized in the provision of financial services. In doing so, the investment strategy and the types of financial instruments defined jointly with the client in accordance with a separate risk profile shall be taken into account.

The level of detail of the inquiries regarding the client's knowledge and experience shall be commensurate with the complexity of the investment, the risk profile, and the investment strategy

The Client's lack of knowledge and experience shall be compensated for by the Asset Manager who shall provide comprehensive information to the Client.

### **4. Duty of clarification and information**

The Client declares that he has been thoroughly informed of the characteristics and risks of the investment structure and strategy he has selected as well as of the investment guidelines and instruments used by the Asset Manager within the scope of the asset management, which the Client confirms to have fully understood as well as the risks associated thereto. This particularly applies to mandates with hedge funds, unregulated (off-shore) structures with or without reduced liquidity and the like. The Client has also been informed by the Asset Manager of the risks of structured products and how they work and is aware of the special structure of these financial instruments.

The Client confirms that he has been informed by the Asset Manager that the use of financial instruments may involve commercial relationships with third parties (e.g., retrocessions).

By signing this Agreement, the Client confirms that the investment objectives discussed and defined with the Asset Manager correspond to his financial and personal situation as well as to his risk tolerance and capacity. The Client furthermore confirms that he has provided the Asset Manager with all information necessary to assess the above and that such information is correct.

The Client confirms that the Asset Manager has provided him with the «Risks involved in Trading Financial Instruments» brochure by The Swiss Bankers Association. The brochure can be viewed free of charge on the homepage of the Swiss Bankers Association (<https://www.swissbanking.ch/en/downloads>).

In particular, to the extent that atypical market risk concentrations in the client's portfolio cannot be excluded, the Asset Manager shall disclose to the client the nature and extent of such concentration risks. Indicators of such atypical market risk concentrations include, inter alia:

- concentrations of 10% or more in individual securities;
- concentrations of 20% or more with a single issuer.

Excluded from this are concentrations arising from collective investment schemes that are subject to regulatory risk-diversification rules, such as UCITS funds and Swiss securities funds.

The Asset Manager shall disclose to the client the nature and scope of such concentration risks.

The Asset Manager shall inform the Client on any significant changes in personnel, organization or shareholding structure, provided these directly affect the Client and are not publicly known.

## **5. Investment strategy and policy**

The assets shall be managed in accordance with the investment structure and strategy selected by the Client. The Asset Manager shall advise the Client within the scope of the risk profile created. If the risk profile is amended it shall be examined against the investment structure and strategy chosen by the Client. The Client shall be contacted by the Asset Manager in the case of a significant change to the risk profile. Should the Client choose to adhere to the original investment structure and strategy, he shall be informed of the associated risks thereto, which must be documented by the Asset Manager.

The investment structure and strategy can be changed at any time by the Client. Such changes must be made in writing and documented by the Asset Manager.

The Client acknowledges and agrees that the Asset Manager accepts no liability for the definition of investment objectives and selection of the chosen investment structure and strategy. The Client acknowledges that even a conservative investment policy does not exclude the risk of financial losses.

The Asset Manager shall execute the mandate at its own discretion, taking account of the risk profile, this Agreement, legal requirements and any other deviating instructions from the Client. Each portfolio structure corresponds to a separate risk and return combination. For this reason, only one portfolio structure and one reference currency can be chosen.

In the event of new assets falling within the scope of management or in the case of a substantial inflow of assets, the Asset Manager shall continuously take into account the current market environment and the investment structure and strategy selected by the Client. In order to provide the necessary flexibility for making individual investments at the most favorable investment time, a maximum time period of three months is allowed for the achievement of the agreed investment range.

In the event of strong market fluctuations leading to a long-term deviation from the agreed investment objectives, the Asset Manager shall inform and discuss with the Client a reasonable adjustment to the investment structure and strategy to the extent possible. In the event of merely short-term market movements, the Asset Manager may deviate from the investment strategy defined above for that time period.

The Client acknowledges that the performance of the selected investment instruments may affect the structure or weighting and, as a result, the above limits of the selected asset allocation may be exceeded or not reached in the short term.

The client acknowledges that the Asset Manager may also use his own products (e.g. collective investment schemes) within the framework of the investment strategy. If the Asset Manager invests in his own products, then the agreements in accordance with the Annex Investment strategy shall apply to these.

The Client acknowledges and accepts that the Asset Manager accepts no liability for the performance and market risk of the investment instruments held and managed in the custody account of the Client.

Moreover, the Client acknowledges that the past performance of an investment instrument or investment strategy, shall be no indication of future performance.

## **6. Client instructions**

The Client is entitled to issue specific investment instructions to the Asset Manager or directly to the custodian bank at any time. The Client acknowledges that any such investment instructions

within the meaning of this clause can under some circumstances be detrimental to the asset management objective. In particular, such Client instructions may impede asset management or limit the effectiveness of the agreed investment strategy.

Should the Client issue investment instructions directly to the custodian bank, the Client undertakes to inform the Asset Manager.

Specific investment instructions from the Client such as execution-only are not comprised within the Asset Manager's management activities. Therefore, the Asset Manager is entitled to decide whether to include such Client transactions within the framework of his ongoing activities, which he otherwise undertakes as part of his asset management activity. The Client particularly agrees that the Asset Manager is not obliged to monitor these investments.

In connection with the specific client's own investments and the conditions related thereto, the Asset Manager has neither an obligation to inform nor a duty to warn. The Client acknowledges that any such investment instructions to this effect may, under certain circumstances, be detrimental to the purpose of this Asset Management Agreement. Moreover, such Client instructions may impede the asset management or limit the effectiveness of the agreed investment strategy.

. In general, the calculation of issuer or concentration risks will not take the investment securities requested by the Client into account. This can result in a deviation from the diversified investment policy otherwise pursued. The Client acknowledges that he will not be notified of the occurrence of such a circumstance by the Asset Manager.

The Asset Manager shall not carry out an appropriateness test for the mere execution or transmission of specific investment instructions. The Asset Manager does expressly hereby inform the Client of this aforementioned fact, prior to the provision of this service and furthermore hereby informs the Client that he is not required to provide the Client with this information prior to each execution. The Client hereby confirms that it has been informed and agrees thereto.

Notwithstanding the foregoing, the Asset Manager shall be obliged to inform the client if specific investment instructions result in atypical market concentrations exceeding the applicable regulatory thresholds, such as concentrations of 10% or more in individual securities or 20% or more with a single issuer.

Excluded from this are concentrations arising from collective investment schemes that are subject to regulatory risk-diversification rules, such as UCITS funds and Swiss securities funds.

## **7. Compensation and third-party benefits**

### **7.1 Asset management fee**

The Asset Manager shall receive the following compensation from the Client for its asset management activities within the scope of this Agreement:

**The asset management fee is:                     Fee**  
**(plus VAT if applicable) per year,**

The management fee is calculated on the basis of the total gross assets managed by the Asset Manager under this agreement (custody account holdings and account balances). The client's assets are valued at the end of each month. The management fee is based on the respective average of these values and is payable in arrears at the end of each calendar quarter and debited by the Asset Manager to the account designated by the client. Upon termination of this contract, the management fee is due pro rata temporis with immediate effect.

The asset management fee does not include fees and costs charged by third parties, such as custodian banks. These include in particular custody account fees, brokerage fees, stamp duties and other charges and expenses. These are invoiced separately to the client.

### **7.2 Performance fee (profit participation)**

The Asset Manager is entitled to an annual performance fee of **8%** p.a. (plus the applicable VAT) of the net capital growth. The net capital growth is calculated from the increase in value of the portfolio, taking into account deposits and redemptions as well as interest and dividend credits, less the asset management fee, bank charges, taxes and other levies. Settlement takes place every six months, on June 30 and December 31, using a high-water mark method.

The Asset Manager is entitled to an annual performance fee of 8% p.a. (plus the applicable VAT) of the net capital growth. The net capital growth is calculated from the increase in value of the portfolio, taking into account deposits and redemptions as well as interest and dividend credits, less the asset management fee, bank charges, taxes and other levies. Settlement takes place annually, on November 30, using a high-water mark method. The performance fee of 8% is charged exclusively on the portion of the net capital growth up to the level of 8% p.a. of the previously applicable high-water mark. Any capital growth exceeding this threshold shall not be subject to the performance fee.

The performance fee is debited to the account specified by the client. Where applicable, VAT is added to this fee.

Upon termination of the contractual relationship, the performance fee shall be due on a pro rata

basis up to the date of termination of the contract.

### 7.3 Remuneration and reimbursements

The Asset Manager refrains from accepting third-party services (e.g. retrocessions, reimbursements, portfolio commissions, etc.) with the exception of structuring fees.

The client is aware that the Asset Manager may, in connection with this asset management activity, add structured products to the client's portfolio that have been arranged by a third party (so-called originator). Investment in such products may result in the distribution of structuring fees from the issuer to the originator. Such fees always remain with the issuer.

The client acknowledges that the use of such structured products may result in additional expenses for the Asset Manager (preparation of the structure, brokerage for best pricing, control of the structuring and the term sheet, settlement, risk management, etc.).

Reimbursements of up to 2% may be paid to the Asset Manager for these additional expenses in connection with a subscription/transaction, to which the Asset Manager is in any case entitled. The client agrees that such reimbursements of expenses accrue to the Asset Manager and waives disclosure in individual cases. The calculation basis shall in each case be the volume of the client's subscription/transaction.

The Asset Manager warrants that, irrespective of whether or not third-party benefits are received, the asset management activities will not be influenced thereby and will always be performed in the best interests of the Client. The Asset Manager undertakes to implement appropriate measures to ensure that potential conflicts of interest do not adversely affect the quality of the services provided. Furthermore, the Asset Manager undertakes to optimize, to the extent possible and appropriate, the costs associated with the asset management in the Client's interest.

The Client confirms that he/she has been informed by the Asset Manager regarding compensation in connection with services provided by third parties and expressly agrees to waive any entitlement thereto.

Client's Signature: \_\_\_\_\_

## 8. Documentation and Accountability

This Asset Management Agreement and the associated risk profile document the financial services agreed with the Client and the information gathered on the Client by the Asset Manager.

If execution-only applies, the Asset Manager has informed the Client, prior to the provision of any execution-only services, that no appropriateness test shall be carried out.

The Asset Manager shall provide the Client with a copy of these documents upon request.

Upon the Client's request, but at least once a year, the Asset Manager shall render account to the Client in a suitable manner of his activity as Asset Manager. Within the scope of his duty, the Asset Manager shall comply with the standards recognized in the asset management industry. In particular, the Asset Manager shall discuss with the Client the asset allocation and performance / development of the assets during the reporting period. In addition, the Client may at any time request an account statement or information on the amount of the owed fees, the expenses incurred as well as the status, if any, of the order execution. Furthermore, the Asset Manager's account statement includes investments made in financial instruments and the received and executed orders.



Within the scope of his duty to render account, the Asset Manager may also use the transaction reports and the custody account statements consolidated by the corresponding custodian bank(s).

If the Client expressly agrees, a longer period than one year may also be chosen.

Any objections with regard to the reports must be addressed by the Client in writing to the Asset Manager within 30 days of the delivery of the report, otherwise the report shall be deemed approved.

## **9. Due diligence and liability**

The Asset Manager has appointed a deputy and informed the Client accordingly.

The Asset Manager shall exercise the asset management mandate with the due professional care required. The Asset Manager shall be liable to the Client only for intentional and grossly negligent conduct. Furthermore, the Asset Manager shall not be liable for the investment performance or indirect damages and consequential losses.

The Asset Manager shall ensure adequate distribution of the risk for the managed assets (diversification), provided the investment strategies and objectives allow for it and as agreed with the Client.

The Asset Manager shall regularly monitor the investment portfolio entrusted to him for management. He shall ensure that the investments comply with the present Agreement and, unless otherwise explicitly agreed with the Client, with the risk profile.

The Asset Manager is not liable for the results of his asset management. The Asset Manager accepts no liability for losses incurred if instructions cannot be given in good time in case the Client is unavailable or the Client does not promptly access the communications and proposals.

The Asset Manager is not liable for any damage caused by the Client's failure to comply with its duties of notification and cooperation under this Agreement or in a manner contrary to the principle of good faith.

Furthermore, the Asset Manager is not liable for the actions of the custodian bank and other third parties (e.g. stock exchanges, settlement agents, etc.).

The risk of any communication transmission, including the confidentiality, especially in the case of e-mail exchange, shall exclusively lie with the Client.

## **10. Client Segmentation according to the FinSA and CISA**

Pursuant to Art. 10 para. 3ter of the Federal Act on Collective Investment Schemes (CISA), private clients for whom a financial intermediary pursuant to Art. 4 para. 3 letter a FinSA provides asset management services within the meaning of Art. 3 letter c clauses 3 and 4 FinSA as part of a long-term asset management relationship, unless they have declared that they do not wish to be considered as such, are deemed to be qualified investors within the meaning of CISA.

Pursuant to Art. 3 para. 3 CISA, professional clients pursuant to Art. 4 para. 3-5 or Art. 5 para. 1 and 4 FinSA are deemed to be qualified investors within the meaning of CISA.

If the client qualifies as a qualified investor, the Asset Manager may also (a) invest in foreign collective investment schemes that are not authorized for distribution in Switzerland and (b) invest in Swiss collective investment schemes that are reserved for qualified investors.

The Asset Manager hereby draws the client's attention to the possibility of declaring in writing that he does not wish to be considered a qualified investor, as a result of which investments under the asset management agreement can only be made in collective investment schemes that are also authorized for distribution to non-qualified investors in Switzerland. This may mean that certain investments are no longer available against the background of more stringent investor protection and therefore have an impact on the investment strategy and policy selected above.

Client classification in accordance with FinSA is carried out by means of a separate declaration by the client in accordance with the Annex "Client segmentation in accordance with FinSA and CISA".

## **11. Duration and termination of the Agreement**

This Asset Management Agreement has been executed for an unlimited term and shall come into full on the execution date. In particular, it shall also remain in force in the event of the Client's death, if he has been legally declared missing or in the event of legal incapacity or insolvency.

Both the Client and the Asset Manager are entitled to terminate this Asset Management Agreement at any time by written notification to the other contracting party in accordance with the provisions of Art. 404 of the Swiss Code of Obligations (OR). If this Agreement is terminated by the Client, it shall end upon the Asset Manager's receipt of written notice. If the Asset Manager terminates this Agreement, termination shall become effective once notice has been received by the Client, or seven working days after the notice was sent by the Asset Manager at the latest.

Termination of this Asset Management Agreement shall not prevent completion of any ongoing transactions. The Client declares that he is prepared in the event of termination to take on responsibility for such transactions and to sign agreements or other documents to this effect, which are necessary for the processing thereof. The Asset Manager shall inform the custodian bank of the termination within a reasonable period of time.

## **12. Amendments to the Agreement**

Amendments to this Agreement can be made at any time and shall be made in writing to be valid, except for changes reflecting mandatory legal and regulatory requirements. Such changes may be implemented and communicated unilaterally by the Asset Manager.

Without a written objection by the customer within a month, the changes are deemed to have been approved.

## **13. Severability clause**

If individual provisions of this Agreement, in full or in part, are or become invalid, unenforceable or incomplete, the validity of the remaining provisions shall remain unaffected. The void, unenforceable or missing provisions shall be replaced by provisions which have been reasonably agreed by the Asset Manager and the Client as appropriate if they had been aware of the ineffectiveness, unenforceability or omission of the corresponding provisions at the time of execution of this Agreement.

#### 14. Applicable law and place of jurisdiction

The legal Client-Asset Manager relationship shall be exclusively governed by the Swiss law. Where legal provisions allow, the place of execution and exclusive place of jurisdiction for all legal proceedings shall be the domicile of the Asset Manager in Zug (likewise the place of debt collection for Clients without a place of residence or a domicile in Switzerland). However, the Asset Manager reserves the right to take legal action against the Client before the competent court corresponding to his place of residence or registered domicile or before any other competent court, whereby the Swiss law shall continue to remain applicable.

#### 15. Confirmation of the Client

By signing this Agreement, the Client confirms that the Asset Manager has fully and accurately performed the above-mentioned enquires, clarifications and information actions (especially with regard to the Client's experience and knowledge of the Client), and that the Client has understood this information. Furthermore, the Client confirms with his signature that he has negotiated and discussed the present Agreement, including the related General Terms and Conditions, with the Asset Manager in detail, that he understands all the provisions, that this Agreement corresponds to his requirements and that the Client therefore expressly agrees with the legal consequences resulting therefrom. In the event of contradictions, the provisions of this asset management agreement shall take precedence over the GTCs.

This Agreement is executed in two counterparts and signed by the parties, each party receiving one counterpart.

Place/Date

Signature of the Client

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Place/Date

Tramondo Investment Partners AG

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Annexes:

- Risk profile questionnaire
- Investment strategy
- Declaration of identity of the beneficial owner
- Client segmentation according to the FinSA and the CISA, incl. Declaration opting-in/-out
- General terms and conditions

## Risk Profile Questionnaire (Asset Management Clients)

**Max Muster**

\_\_\_\_\_  
 Last name, first name / company name (Client)

\_\_\_\_\_  
 Last risk assessment

### I. Risk capacity

1. Which investment objective is a priority for you?

- ☐ Regular income **(0)**  
☐ Long-term preservation of capital **(3)**  
☐ Long-term generation of profits **(6)**

2. Do you have to access the invested capital in case of an extraordinary/unexpected event?

- ☐ under certain circumstances **(3)**  
☐ hardly **(6)**

3. What is the investment time frame for the capital in question?

- ☐ 0-3 years **(0)**      ☐ 4-6 years **(3)**      ☐ 7-10 years **(6)**      ☐ > 10 years **(9)**

4. What is the total amount of assets in CHF less any debt?

- ☐ 0-1 million **(0)**      ☐ 1-5 million **(2)**      ☐ 5-10 million **(4)**      ☐ > 10 million **(6)**

5. What is the total amount in CHF of assets held at banks, excluding any business interests and real estate investments?

- ☐ 0-1 million **(0)**      ☐ 1-5 million **(2)**      ☐ 5-10 million **(4)**      ☐ > 10 million **(6)**

6. What is your total annual net income in CHF?

- ☐ 0-100'000 **(0)**      ☐ 100'000-250'000 **(3)**      ☐ >250'000 **(6)**

7. In addition to this income, are you dependent on an additional, regular source of income from your assets?

- ☐ Yes **(0)**      ☐ No **(6)**

Total Risk capacity: \_\_\_\_\_

## II. Risk Tolerance

1. How would you best describe your approach to risk with regard to achieving the investment objective?

- ☐ Risk Averse      You are very cautious when it comes to risk but are prepared to enter into limited risk and accept moderate short-term price fluctuations to preserve capital and generate return to achieve a regular and constant source of income. **(2)**
- ☐ Risk Tolerant      You are prepared to enter into risk based on price fluctuations and accept short-term losses to achieve long-term capital growth through capital and currency gains as well as the generation of limited income. **(4)**
- ☐ Willing to Take Risks      You are prepared to accept large to aboveaverage price fluctuations on the short term to achieve a significant increase in capital through capital and currency gains. **(6)**

2. In which range should expected annual returns and volatility of the assets be?

- ☐ -2% to +3% **(2)**
- ☐ -4% to +5% **(4)**
- ☐ -5% to +8% **(6)**

3. How would you respond if your investments suffered a 15% loss within one year?

- ☐ You cannot tolerate such a loss and sell some or the majority of your positions. **(2)**
- ☐ You can temporarily bear such a loss for a portion of your assets and wait to see how the situation develops. **(4)**
- ☐ Since you have a long-term investment horizon, you are not concerned about such volatility on the short term and tend to increase some or a majority of your positions. **(6)**
- ☐ You tend to increase some or the majority of your positions. **(8)**

Total Risk tolerance: \_\_\_\_\_

**Result and Risk Assessment**
**Evaluation I. Risk Capacity:**

1. ☒ 0-9 Low Risk
2. ☒ 10 - 18 Reasonable Risk
3. ☐ 19 - 27 Moderate Risk
4. ☐ 28 - 36 Increased Risk
5. ☐ 37 - 45 High Risk

**Evaluation II. Risk Tolerance:**

1. ☐ 0 - 9 Low Risk
2. ☐ 10 Reasonable Risk
3. ☐ 11 - 13 Moderate Risk
4. ☐ 14 - 16 Increased Risk
5. ☐ 17 - 20 High Risk

Based on your responses, the following mandate is suitable for you:

|                                             |                                                                                                                                                                                                                                                                                                                                                                                       |
|---------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1. <input type="checkbox"/> Low Risk        | The Client is very reluctant to take risks. He does not wish to expose his assets to any unnecessary risks, and therefore prefers «safe» investments.                                                                                                                                                                                                                                 |
| 2. <input type="checkbox"/> Reasonable Risk | The Client is fairly risk adverse. He is however willing to take a limited risk in order to achieve a higher long-term yield on his assets.                                                                                                                                                                                                                                           |
| 3. <input type="checkbox"/> Moderate Risk   | The Client regards risks as an opportunity to achieve an attractive longer-term return. On a short-term basis economic loss are acceptable due to the long-term investment horizon.                                                                                                                                                                                                   |
| 4. <input type="checkbox"/> Increased Risk  | The Client wishes to participate significantly in the potential presented by equity markets. In return, he is willing to accept substantial short-term price fluctuations. The client is able financially to bear the respective economic losses.                                                                                                                                     |
| 5. <input type="checkbox"/> High Risk       | The Client is characterized by his high-risk tolerance. The opportunities for long-term gains are seen as the decisive factor for his investment. In return for the opportunity to achieve high long-term returns, he is willing to accept above average fluctuations in value. The client is able financially to bear the respective economic losses during a longer period of time. |

Comments:

If the classifications in I. and II. do not match, the lowest classification is used for the assessment.

### III. Knowledge and Experience

- ☐ The Client confirms that he has been fully informed by the Asset Manager about the risks associated with an asset management mandate and that he is fully aware of the risks.

1. Do you monitor the performance of your investments?

- ☐ Almost never  
☐ One time per quarter  
☐ One time per month  
☐ Daily

2. Do you actively keep yourself informed of the latest stock market developments?

- ☐ No, it does not interest me very much  
☐ Yes, sometimes  
☐ Yes, regularly

### IV. Questions regarding knowledge of the investment strategy

1. Do you understand the relationship between risk and return?

- ☐ Yes  
☐ No

If not, has the Asset Manager explained it to you?

- ☐ Yes   ☐ No

2. Are you familiar with key investment terms like diversification, volatility and liquidity?

- ☐ Yes  
☐ No

If not, has the Asset Manager explained it to you?

- ☐ Yes   ☐ No

3. Do you understand that financial instruments can be complex, as their valuation may depend not only on the underlying assets but also on additional factors? These include, in particular, the method of valuation and the manner in which returns are generated

- ☐ Yes  
☐ No

If not, has the Asset Manager explained it to you?

- ☐ Yes   ☐ No

4. Do you understand that your portfolio may experience concentrations of individual securities or asset classes due to the selection of securities, and do you understand the risks this poses to your financial situation?

- ☐ Yes  
☐ No

If not, has the Asset Manager explained it to you?

- ☐ Yes   ☐ No

**V. Questions regarding the Investment Categories**

The following questions must be answered for each relevant asset class that can be used in the investment category.

**Equities (Stocks)**

1. Do you understand the risks associated with investing in equities?
- ☐ Yes
- ☐ No                      If not, has the Asset Manager explained it to you?
- ☐ Yes    ☐ No

2. Do you have experience investing in equities?
- ☐ Yes
- ☐ No

**Fixed Income**

1. Do you understand how Fixed Income prices fluctuate in response to changes in interest rates and credit risk?
- ☐ Yes
- ☐ No                      If not, has the Asset Manager explained it to you?
- ☐ Yes    ☐ No

2. Do you have experience investing in fixed income investments?
- ☐ Yes
- ☐ No

**Structured Products**

1. Are you familiar with structured products, such as those combining equities, bonds, and other financial instruments?
- ☐ Yes
- ☐ No                      If not, has the Asset Manager explained it to you?
- ☐ Yes    ☐ No

2. Do you have experience investing in structured products?
- ☐ Yes
- ☐ No



**Derivatives (futures, certificates, options, etc.)**

1. Do you understand the specific risks associated with derivatives?  
☐ Yes  
☐ No                      If not, has the Asset Manager explained it to you?  
☐ Yes    ☐ No

2. Do you have experience investing in derivatives?  
☐ Yes  
☐ No

**Cash & Cash Equivalent**

1. Do you understand the specific risks associated with money market investments?  
☐ Yes  
☐ No                      If not, has the Asset Manager explained it to you?  
☐ Yes    ☐ No

2. Do you have experience investing money market investments?  
☐ Yes  
☐ No

**Declaration by the Client:**

The Client confirms that the information provided above is complete and true. The Asset Manager may rely fully on this information in assessing whether financial investments are suitable for the Client. The Client undertakes to inform the Asset Manager immediately of any changes in the risk profile.

The Asset Manager accepts no responsibility or liability for the accuracy or completeness of the information contained in the questionnaire.

Place/Date

Signature of the Client

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## Investment strategy

- ☐ new investment strategy
- ☐ replaces the existing investment strategy

Last name, first name/optional company (Client)

**Max Muster**

## Reference currency

Each portfolio structure corresponds to a separate risk and return combination. For this reason, only one portfolio structure and one reference currency can be chosen. The reference currency is the currency in which calculations are made by the investor and performance is measured. However, this does not exclude investments in other currencies. The Client chooses the following currency:

### Currency

## Binding nature

The following investment principles form an integral part of the asset management agreement and are binding for the Asset Manager.

## Investment restrictions

The Client has established the following investment restrictions:

### Investment Categories

|                         |  |   |   |        |
|-------------------------|--|---|---|--------|
| Cash & Cash Equivalents |  | 0 | - | Cash   |
| Fixed Income            |  | 0 | - | Bonds  |
| Equities                |  | 0 | - | Equity |
| Alternative Investments |  | 0 | - | Alt    |
|                         |  |   |   |        |

|                                            |                                                                   |
|--------------------------------------------|-------------------------------------------------------------------|
| Maximum allocation per individual security | Risk disclosure is mandatory if the threshold of 10% is exceeded. |
| Maximum allocation per issuer              | Risk disclosure is mandatory if the threshold of 20% is exceeded. |

| Currency Allocation |  |   |   |     |
|---------------------|--|---|---|-----|
| CHF                 |  | 0 | - | CHF |
| USD                 |  |   | - | USD |
| EUR                 |  |   | - | EUR |
|                     |  |   | - | GBP |
| Others              |  |   | - | And |

**Further instructions:**

Further instructions

- ☐ The client agrees that the Asset Manager invests the bandwidth in alternative investments up to a maximum quota of 10% in illiquid alternative investments. Illiquid investments are investments in alternative investments with a redemption period of at least 2 weeks.

**Use of in-house products**
**In-house products Yes**

- ☐ The client **agrees** that the Asset Manager may make investments in his own products (funds and certificates, etc.) up to a maximum quota of 100% of the portfolio. The client acknowledges that the Asset Manager receives remuneration for his activity as Asset Manager of the collective investment schemes managed by him in accordance with the respective fund prospectus/fact sheet of the product. If the client invests in such products which are managed by the Asset Manager, the client explicitly agrees that an asset management fee will be charged for these assets in accordance with Art. 7 of the asset management agreement.

**In-house products Yes – No Double Dipping**

- ☐ The client **agrees** that the Asset Manager may invest in his own products (funds and certificates, etc.) up to a maximum quota of 100% of the portfolio. If the client invests in such products which are managed by the Asset Manager, no asset management fee will be charged for these assets in accordance with Art. 7 of the asset management agreement.

**No In-house products**

- ☐ The client **does not agree** that the Asset Manager makes investments in its own products (funds and certificates, etc.).

(Version August 2025)

## Standard Tramondo Investment Strategies

The following standard investment strategies are offered. They differ in terms of risk and return expectations and pursue different investment objectives. The assets shall be managed in accordance with the investment strategy determined by the client below.

### Fixed-Income Investment Mandate

The conservative strategy is designed for an investor with a low risk tolerance, focusing on capital preservation and stable income generation. The allocation ranges allow flexibility in adjusting between cash, fixed income, and a small portion of equities, while avoiding alternative investments, derivatives, and leverage to maintain a conservative risk profile.

|                         |                                            |        |
|-------------------------|--------------------------------------------|--------|
| <b>Risk Appetite</b>    | <b>Low</b>                                 |        |
| <b>Objective</b>        | Preservation of capital, income generation |        |
| <b>Asset Allocation</b> | Cash & Cash Equivalents                    | 0-20%  |
|                         | Fixed Income                               | 0-100% |
|                         | Equities                                   | 0%     |
|                         | Alternative Investments                    | 0%     |

### Income Investment Mandate

The conservative enhanced strategy caters to investors with a low to moderate risk tolerance, aiming for regular income while also allowing for potential growth through limited exposure (enhanced) to equities and alternative investments. The strategy excludes the use of derivatives and leverage, emphasizing a conservative approach to achieving growth objectives alongside income generation.

|                         |                                   |       |
|-------------------------|-----------------------------------|-------|
| <b>Risk Appetite</b>    | <b>Low to moderate</b>            |       |
| <b>Objective</b>        | Income with some growth potential |       |
| <b>Asset Allocation</b> | Cash & Cash Equivalents           | 0-20% |
|                         | Fixed Income                      | 0-70% |
|                         | Equities                          | 0-35% |
|                         | Alternative Investments           | 0-35% |

### Balanced Investment Mandate

This balanced strategy is designed for investors with a moderate risk tolerance, focusing on achieving both growth and income. It allows for a significant range in fixed income investments, complemented by a strategic allocation to equities and a smaller exposure to alternative investments and derivatives. The use of leverage is permitted, providing additional flexibility to enhance returns and potentially increase risk.

|                         |                            |       |
|-------------------------|----------------------------|-------|
| <b>Risk Appetite</b>    | <b>Moderate</b>            |       |
| <b>Objective</b>        | Balanced growth and income |       |
| <b>Asset Allocation</b> | Cash & Cash Equivalents    | 0-30% |
|                         | Fixed Income               | 0-50% |
|                         | Equities                   | 0-65% |
|                         | Alternative Investments    | 0-25% |

### Growth Investment Mandate

This balanced growth strategy targets investors with a moderate to high risk tolerance, focusing primarily on growth with a secondary objective of income generation. It provides a flexible asset allocation with a substantial allocation to equities and alternative investments to drive growth, while still permitting significant exposure to fixed income for income stability. The use of leverage is incorporated to potentially enhance returns and manage risks effectively.

|                         |                         |        |
|-------------------------|-------------------------|--------|
| <b>Risk Appetite</b>    | <b>Increased</b>        |        |
| <b>Objective</b>        | Growth with some income |        |
| <b>Asset Allocation</b> | Cash & Cash Equivalents | 0-60%  |
|                         | Fixed Income            | 0-20%  |
|                         | Equities                | 0-100% |
|                         | Alternative Investments | 0-20%  |

### Capital Gain Investment Mandate

This high growth strategy is tailored for investors with a high-risk tolerance, primarily aiming for maximum growth. It offers a highly dynamic asset allocation with a substantial emphasis on equities, which can go up to 100%, reflecting the aggressive growth focus. The strategy also includes significant potential exposure to alternative investments and derivatives to exploit market opportunities and diversify the growth avenues. The use of leverage is allowed, enhancing the ability to pursue higher returns while acknowledging increased risk.

|                         |                         |        |
|-------------------------|-------------------------|--------|
| <b>Risk Appetite</b>    | <b>High</b>             |        |
| <b>Objective</b>        | Maximum growth          |        |
| <b>Asset Allocation</b> | Cash & Cash Equivalents | 0-80%  |
|                         | Fixed Income            | 0%     |
|                         | Equities                | 0-100% |
|                         | Alternative Investments | 0-20%  |

### Deviation from the risk profile

Should the Client, based on specific instructions, choose an investment strategy that carries higher risks or offers lower potential returns than the standard investment strategy recommended by the Asset Manager according to the Client's assessed risk profile, the Client hereby acknowledges and confirms the selection of this investment strategy with full awareness of its increased risk or reduced return potential.

Place/Date

Signature of the Client

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**Declaration of identity of the beneficial owner (Form A)**

Contracting partner

Max Muster

Account / securities account number

Portfolionummer1

Category (where appropriate)

In accordance with Article 27 of the Agreement on the Swiss banks' code of conduct with regard to the exercise of due diligence (CDB 20), the contracting partner hereby declares that the person(s) listed below is / are the beneficial owner(s) of the assets deposited under the above relationship. If the contracting partner is the beneficial owner of the assets, the contracting partner's details must be set out below:

|   |                                                                                                                                                                                   |                                                                                                                       |
|---|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------|
| 1 | Last name / entity<br><br><u>Muster</u><br><br>Date of birth<br><u>1980-01-01</u><br><br><u>Bahnhofstrasse 1 Adresse21 Zurich</u><br>Actual address of domicile/registered office | First name<br><br><u>Max</u><br><br>Nationality<br><u>Nat</u><br><br><u>Switzerland</u><br>Country (no abbreviations) |
| 2 | Last name / entity<br><br><u>Nachname1</u><br><br>Date of birth<br><u>Birth1</u><br><br><u>Adresse12 Adresse22 Ort2</u><br>Actual address of domicile/registered office           | First name<br><br><u>Vorname1</u><br><br>Nationality<br><u>Nat1</u><br><br><u>Land2</u><br>Country (no abbreviations) |

The contracting partner hereby undertakes to automatically inform the bank of any changes.

Date

Signature(s)

It is a criminal offence to deliberately provide false information on this form (Article 251 of the Swiss Criminal Code, document forgery).





## Client Segmentation according to the FinSA and the CISA

**Tramondo Investment Partners AG** (hereinafter refer to as «the Company»)

Client:

**Max Muster**

Bahnhofstrasse 1 Adresse23

Zurich, Switzerland

This form establishes the client segmentation sets forth in Art. 4 FinSA and records the client classification by the Company.

### 1. Classification by the Company

Financial service providers shall assign the persons for whom they provide financial services to one of the following segments: a) retail clients; b) professional clients; c) institutional clients. Retail clients benefit from the highest level of protection provided by the regulations.

Pursuant to the available information, the Company classifies the client as follows:

- ☒ **Retail client**
- ☐ **Professional client**
- ☐ **Institutional client**

### 2. Information on the possibility to change client classification according to the FinSA

The classification by the Company governs the categorization of the client relationship, unless the client declares s/he wishes to be reclassified (opting-out/opting-in) in accordance with Art. 5 FinSA by means of the declaration as a separate appendix thereto.

**Retail clients** may declare that they wish to be treated as professional clients in accordance with Appendix 'Reclassification of a retail client and classification as a professional client (Opting-out)'.

**Professional clients** who are not classified as institutional clients, may declare that they wish to be treated as retail clients (Opting-in) or as institutional clients in accordance with Appendix 'Declaration of a Professional Client'. In addition to this, professional clients may expressly release the Company, from applying the code of conduct set out in Art. 8, 9, 15 und 16 FinSA.

**Institutional clients** may declare that they wish to be treated only as professional clients in accordance with Appendix 'Declaration of an institutional client'.

**3. Information on the classification as qualified investor under the CISA**

According to Art. 10 para. 3 CISA, **professional clients** are automatically considered as **qualified investors**, even though they have declared that they wish to be considered as retail clients.

Pursuant to Art. 10 para. 3ter CISA, **retail clients** are automatically considered as **qualified investors** if they have executed a permanent asset management or investment advisory agreement with a prudentially supervised financial intermediary. However, they may declare in writing that they do not wish to be treated as qualified investors. As a consequence, they cannot acquire collective investment schemes whose offer is exclusively aimed at qualified investors.

Place/Date

Signature(s) of the Client

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## Reclassification of a retail client and classification as a professional client (Opting-out)

Client: **Max Muster**

### 1. Implications of reclassification as a professional client

According to Art. 5 para. 1 FinSA, retail clients may declare that they wish to be treated as professional clients. As a professional client, the level of protection decreases in the following fields:

- Reduced application of the code of conduct set forth in Art. 7 ff. FinSA and Art. 6 ff FinSO.
- No duty to provide a prospectus for a public offer for securities (Art. 36 FinSA).
- No duty to provide a Key Information Document (KID) on recommended financial instruments (Art. 8 para. 3 and Art. 58 FinSA).

In addition to this, professional clients may expressly release the Company from applying the following rules of conduct (Art. 20 para. 2 FinSA):

- Duty to provide information (Art. 8 and 9 FinSA, Art. 6 bis 15 FinSO): The Company informs its clients about its organisation and supervisory status, and the risks and cost associated with financial instruments, possible economic ties with third parties (in particular, retrocessions) and the market offer taken into account when selecting financial instruments.
- Documentations and Rendering of Account (Art. 15 and 16 FinSA, Art. 18 and 19 FinSO): The Company shall document the financial services agreed, the information collected about the client, and any advice to clients against availing of the service. A copy of this documentation must be provided to the client upon request and an account of the portfolio under management must also be provided.

In the case of professional clients, the Company may assume that these clients have the required level of knowledge and experience and can financially bear the investment risks associated with the financial service.

### 2. Declaration of the retail Client

- ☒ The Client declares that s/he wishes to be treated as a professional client who faithfully declares that s/he meets at least one of the following criteria to be deemed as a high-net worth individual according to Art. 5 para. 1 and 2 FinSA.
- on the basis of training, education and professional experience or on the basis of comparable experience in the financial sector, the Client possesses the necessary knowledge to understand the risks associated with the investments and has assets of at least CHF 500'000;
  - The Client has at her/his disposal at least CHF 2 million.
- ☒ The Client hereby requests to be treated by the Company as a professional client. The Client acknowledges and agrees that a lower level of protection is provided by the reclassification as a professional client.

### 3. Waiver of the application of certain rules of conduct

According to Art. 20 para. 2 FinSA, **professional clients** may expressly release financial service providers from applying the code of conduct set out in Articles 8, 9, 15 and 16 FinSA.

- ☒ The Client declares that, as a professional client, s/he releases the Company from applying the code of conduct set out in Articles 8 and 9 FinSA (Duty to provide Information) and Articles 15 and 16 FinSA (Documentation and rendering of account).
- ☐ The Client, despite being classified as a professional client, declares not to waive the application of the code of conduct set out in Articles 8, 9, 15 and 16 FinSA.

The Client confirms that s/he has sufficient knowledge, experience and expertise to make investment decisions and to adequately assess the risks associated therewith. The Client confirms that s/he has been informed by the Company about the consequences of the reclassification. In addition, the Client acknowledges that the Company is obliged to become active and adjust the Client's classification if it believes that the Client no longer meets the above conditions.

Place/Date

Signature of the Client

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## Confirmation regarding cross-border provision of services

Last name, first name/optional company (Client)

**Max Muster**

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### Cross-border provision of services

In its Code of Conduct, Tramondo Investment Partners AG undertakes to comply with all applicable laws and regulations. In Switzerland, Tramondo Investment Partners AG is licensed by the Swiss Financial Market Supervisory Authority FINMA as an Asset Manager for collective investment schemes. Outside Switzerland, Tramondo Investment Partners AG provides its services to clients outside Switzerland on the exclusive initiative of such clients ("Reverse Solicitation") and to the extent permitted by local foreign laws.

### Confirmation regarding the opening of a business relationship

The Client hereby confirms that:

- Tramondo Investment Partners AG has not actively marketed or promoted the opening of an account relationship, the conclusion of an asset management agreement or the provision of other services or products outside Switzerland.
- The initial contact between the Client and Tramondo Investment Partners AG was made on the Client's own initiative and at the Client's own request.
- The provision of asset management documents or further information about the services of Tramondo Investment Partners AG was made solely at the explicit request of the client.

The contracting partner hereby undertakes to automatically inform the Asset Manager of any changes.

Place/ Date

Signature(s) of the Client

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## General Terms and Conditions (GTC) of Tramondo Investment Partners AG

### 1. Scope

These General Terms and Conditions («GTC») apply to all services provided by **Tramondo Investment Partners AG** («Tramondo») to the Client («Client») (in particular as Investment Advisor), unless special agreements (e.g. in the asset management agreement) exist.

### 2. Service principles

Tramondo carries out all its work according to professional standards. This includes that all legal provisions are complied with. The Client himself is responsible for analyzing his individual tax situation and making appropriate arrangements. Tramondo assumes no responsibility for tax consequences arising from the provision of services. In particular, investment advice or asset management does not include tax or legal advice. It is the Client's responsibility to make use of appropriate advisory services and to clarify any (tax) legal issues. Furthermore, Tramondo does not make any binding promise of minimum returns in asset matters.

### 3. Lack of capacity to act

Tramondo is not liable for damages resulting from the lack of capacity to act on the part of the Client, his authorized representatives or third parties, unless this lack of capacity to act has been communicated to Tramondo in writing and Tramondo has breached its obligation to exercise due care and diligence.

### 4. Notifications | Change of personal circumstances

Tramondo relies on always having up-to-date Client information. The Client is therefore obliged to inform Tramondo immediately in writing of any changes, in particular changes to his person, his authorized representatives, his control holders as well as his beneficial owners of the assets (name, effective residence address, address for service, nationality, tax status, change in financial situation, etc.). In addition, the Client must also immediately notify Tramondo of any changes in the «Risk Profile» appendix.

If the Client violates this obligation, he shall bear responsibility for any costs incurred in the investigations as well as any further damage incurred by Tramondo.

Furthermore, the Client undertakes to provide Tramondo, without being requested to do or upon request, with the information that Tramondo needs to fulfil its contractual or legal

duties (in particular with regard to money laundering).

### 5. Contact and lack of communication

The Client shall ensure that contact with Tramondo is not lost. If contact is interrupted, Tramondo may pass on the costs of address searches, as well as the special handling and monitoring of dormant assets, to the Client.

### 6. Communication in general

Notices to the Client shall be deemed delivered if sent to the last correspondence address provided by the Client. The correspondence address(es) used for notifications to the Client shall be the address provided to Tramondo. In the absence of any objection on the part of the client, Tramondo's communications shall be deemed approved within one month.

If required by the Client, Tramondo is also authorized to retain mails and any kind of documentations corresponding to the Client. The Client is responsible to authorize in an appropriate communication Tramondo to withheld mails and documentations. All liabilities and risks out of retaining mails and other documentation remains with the Client.

In principle, Tramondo communicates with the Client in accordance with the means selected by the Client. In the absence of a corresponding agreement, Tramondo reserves the right to choose the appropriate form of communication at its own discretion.

The Client is also aware that Tramondo can only be contacted during normal office hours. Tramondo accepts no responsibility for orders received outside normal office hours and does not take any special measures to ensure the receipt and execution of such orders.

The Client authorizes Tramondo to make use of the electronic services of the custodian bank and to use them for its asset management activities underlying this agreement. The Client is aware of the relevant provisions by the corresponding custodian banks in terms of electronic services.

The Client grants Tramondo the right to receive all bank correspondence, account and custody account statements as well as additional statements for the accounts and custody accounts listed in this agreement.

Tramondo is further authorized, within the scope of its activity as an Investment Advisor, to sign on behalf of the Client all statements of account, receipts, notification of discharge and correctness or similar.

Tramondo has the right, but not the obligation, to record all telephone conversations with the Client. Tramondo further reserves the right to retain or delete the recorded telephone conversations in accordance with its internal policies. The Client acknowledges that Tramondo may use these recordings as evidence in the event of a disagreement.

The Client shall always issue instructions to Tramondo in writing. If the Client issues instructions to Tramondo not only in writing, but also by telephone, fax or electronically (e.g. e-mail), then the following rules shall apply:

#### **7. Use of modern communication tools by Tramondo in particular**

The Client hereby expressly authorizes Tramondo to carry out instructions issued electronically or by telephone or fax. He acknowledges that the use of telephone, fax and other electronic means of communication (specifically e-mail) entail significant risks and that it is not always possible to verify with certainty the identity of the instructing party. In particular, signatures can be forged, and orders can be transmitted late or in an incomplete form. For this reason, Tramondo reserves the right to not carry out instructions issued electronically or by fax in cases of doubt regarding the power of disposal of the instructing party. Tramondo is entitled to require written confirmation of an instruction at any time.

The Client also acknowledges that the internet is a public network and that protection of professional secrecy cannot be fully ensured.

The Client is also aware that there may be time delays in the processing and implementation of orders via electronic means of communication. Such orders shall only be deemed to have been accepted by Tramondo once the latter has confirmed receipt in writing.

The continuous retrieval of electronically placed orders cannot be guaranteed on an ongoing basis. Tramondo therefore accepts no liability for electronic orders that are retrieved and/or processed too late.

Within the scope of its services, Tramondo will use means of communication such as e-mail/internet/e-banking/telephone/fax/messenger services (hereinafter referred to as «modern means of communication»), which involve risks with regard to confidentiality and security.

The Client expressly agrees to this and authorizes Tramondo for this purpose in particular, but not only, to transmit Client data unencrypted via these means, to communicate unencrypted with the Client, to make enquiries of Client data at partner companies and to process orders electronically. Should the Client generally or in individual cases not agree to the transmission of information and documents via modern communication tools, Tramondo must be informed of this in writing. Otherwise Tramondo assumes that the Client agrees to the use of these means of communication.

Tramondo has taken extensive measures to limit the above risks as far as possible through controls and security precautions. In the event of any direct, indirect or consequential damage attributable to incomplete or incorrect transmission or falsification of identity when using modern means of communication, the Client waives the right to claim damages and undertakes to indemnify Tramondo for all damages. All risks in connection with the transmission of electronically transmitted orders are thus borne by the Client. If damage occurs by chance or force majeure without the Client or Tramondo having violated his/her due diligence, each party shall bear its own damage.

#### **8. Execution of orders**

The Client places orders conclusively in accordance with the form agreed between him and Tramondo. If the Client places orders in a form other than the agreed form, the transmission and execution of the corresponding orders shall be entirely at the Client's risk.

Tramondo is entitled, but not obliged, to obtain (re-)confirmations from the Client or to carry out other checks regarding the orders before executing the Client's orders, if necessary.

Shall Tramondo exercise this right, the order will only be executed after submission of the (returned) confirmation.



In all other respects, the liability of Tramondo for the non-execution, defective or delayed execution of orders shall be governed by Clause 20.

### 9. Clients Complaints

All objections or complaints concerning the execution or non-execution of orders of any kind, concerning account or custody account or asset statements or the valuation of credit balances or other communications from Tramondo must be made immediately after receipt of the relevant notification, in any case within one month of delivery, otherwise they shall be deemed to have been approved by the Client. Complaints not made in good time by the Client may result in the Client breaching the duty to mitigate loss incumbent upon him and, as a consequence, he may no longer be able to claim for damages which he may have incurred as a result of the defectiveness of the documents complained about.

### 10. Content and scope of the order

Tramondo shall define the content and scope of the specific order placed by the Client in the respective agreement.

### 11. Investment strategy and investment policy

The investment strategy each correspond to a separate risk and return combination. Therefore, only one investment strategy and one reference currency can be selected.

The Client is aware and accepts that Tramondo assumes no responsibility for the performance and also for the market risk of the investment instruments contained and managed in the Client's portfolio.

Furthermore, the Client is aware that the past performance of e.g. an investment instrument or an investment strategy is not an indication of its future performance.

### 12. Fiduciary duties

In the performance of its asset management or investment advisory activities, Tramondo always safeguards the interests of the Client to the best of its knowledge and belief.

To this effect, Tramondo has taken appropriate organizational measures to avoid conflicts of interest in the performance of its asset management or investment advisory activities and to exclude disadvantages for the Client due to such conflicts of interest.

If, despite the measures taken, conflicts of interest cannot be avoided or can only be avoided with disproportionate effort, Tramondo shall disclose the conflicts of interest to the Client in an appropriate manner. In particular, Tramondo shall explain the circumstances from which the conflict of interest arises, what risks may arise from it for the Client and what measures are taken to mitigate said risks.

Tramondo has specifically informed the client that the range of financial instruments taken into account in the selection process consists either of its own instruments or of a combination of its own instruments and those of third parties. For the concrete selection of securities, it has defined a process based on industry-standard, objective criteria. Unavoidable conflicts of interest arising from the inclusion of its own financial instruments have been disclosed.

Tramondo shall keep confidential all privileged information which is brought to its knowledge in the course of its asset management or investment advisory activities. This duty of confidentiality shall also apply after the termination of this contract.

The duty to testify and to provide information to an authority or supervisory organization on the basis of corresponding legal provisions as well as a possible delegation of the execution of the mandate to third parties (cf. Clause 16 below) remain reserved.

### 13. Fees and costs

Tramondo determines the fees charged to the Client in the respective asset management agreement.

Any third-party fees or taxes, e.g. sales taxes, which are incurred in the execution of the order shall be invoiced to the Client additionally or separately. Invoices are to be paid within 30 days without any deductions.

### 14. Discretion

Within the framework of the contractual relationship, Tramondo is legally obliged to treat all client data confidentially. Accordingly, Tramondo undertakes not to disclose any information to third parties without the Client's consent - except for the exceptions listed in these GTC.

All data required for the assessment of the risk and for the verification or execution of orders may be passed on to involved (custodian) banks and/or other auxiliary persons without further consent of the Client. Tramondo is entitled to destroy the files it has created after ten years of completion of the order without further consent from the Client.

#### **15. Cooperation and communication with custodian banks in particular**

Tramondo uses the services of suitable custodian banks within the scope of the order from the Client, whereby Tramondo is entitled to disclose information about the Client as well as all data relating to the execution of the order to the custodian banks. Similarly, the Client acknowledges and agrees that the custodian banks may provide Tramondo with information about the Client and in connection with the Order, in particular by electronic means, again subject to the risks referred to in Clause 7. The Client acknowledges the agreements, if any, between Tramondo and the respective custodian banks regarding electronic communication and may, upon written request to Tramondo, at any time request to inspect the corresponding agreements.

Tramondo has delegated the loss threshold reporting according to Art. 62 DelVO (Delegated Regulation (EU) 2017/565 of the Commission of 25.04.29) to the corresponding custodian bank. In case of a reportable event according to Art. 62 DelVO, the Client will therefore not be informed by Tramondo but by the custodian bank.

#### **16. Outsourcing of business areas**

The Client acknowledges and expressly agrees that Tramondo may outsource individual business areas (e.g. information technology, compliance) to qualified third parties and that data may be shared with these third parties to the extent necessary for the execution of the order. The Client acknowledges that in the case of outsourcing, his data may also be transferred to a delegation counterparty. The delegation counterparty is in any case subject to the same confidentiality obligations as Tramondo.

The Client releases Tramondo from the obligation of business secrecy towards the delegation recipient as well as towards the account and custodian bank and agrees to the transfer of his data to the latter.

#### **17. Compliance with laws | combating money laundering**

The Client is obliged to comply with the national and international legal and regulatory provisions, in particular those relating to combating money laundering and the financing of terrorism, the provisions of criminal law and the provisions of tax law applicable to him.

If the Client fails to comply with these provisions, he shall bear the costs for clarifications and expenses incurred by Tramondo. The Client acknowledges that circumstances may arise upon initiating or during the course of the business relationship which oblige Tramondo by law or due to the terms and conditions set forth in the agreement carry out additional clarifications regarding the business relationship or a transaction and to report the business relationship to a competent authority or to terminate it. In addition, Tramondo may be legally or contractually obliged to inform the custodian banks of its clarifications, which may lead to assets freeze by the custodian bank. The Client is obliged to provide Tramondo, upon request, with all information that Tramondo requires in order to comply with its legal obligations to clarify or report. This includes, for example, information about the origin of the assets and the circumstances and background of a transaction initiated by the Client beyond the scope of the asset management (e.g. withdrawal of assets).

The Client further acknowledges that, in accordance with the applicable Swiss provisions on money laundering, Tramondo has either a duty to report or a right to report to the Swiss authorities in the event of a suspicion that the assets involved in the business relationship are connected with a criminal offence or originate from a crime or are at the disposal of a criminal organisation. In these cases, is further entitled not to comply with the instructions received from the Client and in particular not to execute orders that have been placed. In addition, Tramondo may inform the custodian bank of any suspicious activity report made by the Company.

All damages resulting from orders and instructions not executed or executed late shall be borne by the Client, provided that Tramondo has acted within the framework of the respective applicable Swiss provisions regarding money laundering.

**18. Data protection**

Tramondo collects and processes the Client's data in accordance with the applicable provisions of the Swiss Data Protection Act («DPA») as well as other relevant data protection provisions and ensures compliance therewith, to the extent applicable.

This document replaces all previous versions of the General Terms and Conditions.

*Date 01.07.2025*

**19. Ombudsstelle**

Tramondo is affiliated with the Financial Ombudsman Service Switzerland (FINOS).

Finanzombudsstelle Schweiz (FINOS)

Talstrasse 20, 8001 Zürich

Tel.: +41 44 552 08 00

e-Mail: [info@finos.ch](mailto:info@finos.ch)

Web: [www.finos.ch](http://www.finos.ch)

In the event of disputes between Tramondo and the client, the client is free to initiate mediation proceedings with the ombudsman's office.

**20. Liability | Limitation of Liability**

The liability of Tramondo is generally limited, regardless of the legal ground, to losses or claims for damages caused by intentional or grossly negligent conduct.

The Client furthermore acknowledges that, regardless of the legal basis, any liability for damages for loss of profit, loss of data, goodwill or consequential damages, indirect damages, special damages or other damages incurred on the occasion of the fulfilment of the agreement, irrespective of whether such damages were foreseeable or not, is fully excluded.

**21. Applicable law | Place of jurisdiction**

All legal relationships of the Client with Tramondo are exclusively subject to substantive Swiss law to the exclusion of the provisions of international private law and other conflict of laws. The place of performance, place of debt collection for clients domiciled abroad and exclusive place of jurisdiction for all types of proceedings is Zug. However, Tramondo also has the right to file a lawsuit against the Client at the competent court of his domicile or any other competent court.

**22. Amendments to the General Terms and Conditions**

Tramondo reserves the right to amend the General Terms and Conditions at any time. These will be notified to the Client by e-mail, on the website of Tramondo or by other suitable means and will be deemed to have been approved without objection within one month.

